

EDUCATION The Class Complex

By Nandini Vaish and Kruttika Kallury

What are the implications of a caste census? To this Yogendra Yadav, senior fellow, Centre for the Study of Developing Societies, says, "It is a misnomer for what the Government has agreed to do. It is an enumeration of the Other Backward Castes (OBCs), exactly on the same lines as the current enumeration of the Scheduled Castes (SCs) and the Scheduled Tribes (STs)." He says it is ironic that those who opposed OBC reservation on the ground that there was no credible evidence about their numbers and educational condition are now opposing the gathering of such evidence.

There is a minimum reservation of 49.5 per cent in educational institutions run by the Centre. This includes 15 per cent for the SCs, 7.5 per cent for the STs and 27 per cent for the OBCs. Although the Supreme Court has ruled that institutes can't impose more than 50 per cent reservation, several states have got around this by placing it under the Ninth Schedule of the Constitution. Rajasthan, for instance, has proposed 68 per cent reservation which includes 14 per cent for forward castes; Maharashtra has 52 per cent reservation and Tamil Nadu has proposed 69 per cent. After much debate, Andhra Pradesh introduced a law allowing 4 per cent reservation for Muslims. In the IITs and IIMs, there is 49 per cent reservation, while 22 per cent of seats are reserved at AIIMS. A judgment by the Supreme Court on OBC quota in education institutions in 2008 upheld a law which provides for 27 per cent quotas for OBCs in institutions supported by the Centre. It would cost the government Rs 17,000 crore over three years to implement the Central Educational Institution (Reservation in Admission) Act, 2006, for higher education.

On behalf of the petitioners, advocate Fali S. Nariman had argued that if Article 15(5) was permitted to remain in force, then, instead of achieving the goal of a casteless and classless society, India would be converted into a caste-ridden society. This was rejected by the Government. The HRD Ministry says it does not maintain any data on post-wise number of teachers or students belonging to SCs/STs/OBCs. But the quotas for teachers in the Central universities are

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A YOUNG MEDICAL STUDENT PROTESTS AGAINST THE APEX COURT ORDER THAT UPHELD A LAW PROVIDING 27 PER CENT RESERVATION FOR OBCs IN CENTRAL GOVERNMENT-SUPPORTED INSTITUTIONS

not adequately filled; the strength of positions that can be claimed by the SCs is 16.2 per cent but only 3.69 per cent is utilised while against 8.2 per cent, only 2.1 per cent is being filled in by the STs.

Since the 2006 Act provides for implementation in a phased manner consistent with the maintenance of standards of education, even seats in certain courses of study in different institutions have also not been fully filled. Last year, as many as 1,000 OBC quota seats were converted to the general category across 60 colleges of the Delhi University (DU). "The DU already has 15 per cent quota for the SCs, 7.5 per cent for the STs and 27 per cent for the OBCs. Over and above this, there is a 3 per cent quota for the physically challenged and also for the minorities in a few colleges," says Vice-Chancellor Deepak Pental. And with the caste census, the quotas will become only more complex.

What we need to do is not just increase quotas but simultaneously de-reserve. Certain castes like Meenas are doing very well. But the politics and structure of this nation doesn't allow such de-reservation to take place. In 1931, when such a census was consolidated, the higher castes were more in number as it was more prestigious to belong to these castes. But now it has turned to the advantage of the lower classes. If caste census is done with the honest intention of recording such data then it is good. But now it looks as if the Government is giving in to political pressure.

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